

Court No. - 32

Case :- WRIT - C No. - 40267 of 2019

Petitioner :- Ashish Kumar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Om Prakash Singh

**Counsel for Respondent :- C.S.C., Krishna
Agarawal**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice (electricity due) dated 23.11.2019 issued by the respondent no. 4 i.e. Tehsildar, Tehsil Manikpur, District Chitrakoot amount of Rs.9,92,329/-.

(ii) Issue a writ, order or direction in the nature of mandamus directing to the concerned respondent no. 2 i.e Executive Engineer, Vidyut Vitran Mandal, District Chitrakoot to reconsider the matter and to make correct valuation after compounding.

(iii) Issue a writ, order or direction in the nature of mandamus directing to the respondent no. 2 and 3 to accept correct amount of due of the electricity bill in easy installment."

Heard the learned counsel for the petitioner, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 20.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated and the impugned recovery citation shall stand revived automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

With the above observations, the writ petition stands disposed of.

Order Date :- 7.12.2019

Arun